

COMMITTEE ON REGULATORY AFFAIRS AND GOVERNMENT EFFICIENCY
SENATE AMENDMENTS TO H.B. 2439
(Reference to House engrossed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[~~GREEN STRIKEOUT IN BRACKETS~~] indicates new text removed from statute or previously enacted session law.

[~~Green strikeout in brackets~~] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<~~Green strikeout in carets~~>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 49-104, Arizona Revised Statutes, is amended to
3 read:

4 49-104. Powers and duties of the department and director

5 A. The department shall:

6 1. Formulate policies, plans and programs to implement this title
7 to protect the environment.

8 2. Stimulate and encourage all local, state, regional and federal
9 governmental agencies and all private persons and enterprises that have
10 similar and related objectives and purposes, cooperate with those
11 agencies, persons and enterprises and correlate department plans, programs
12 and operations with those of the agencies, persons and enterprises.

13 3. Conduct research on its own initiative or at the request of the
14 governor, the legislature or state or local agencies pertaining to any
15 department objectives.

16 4. Provide information and advice on request of any local, state or
17 federal agencies and private persons and business enterprises on matters
18 within the scope of the department.

19 5. Consult with and make recommendations to the governor and the
20 legislature on all matters concerning department objectives.

21 6. Promote and coordinate the management of air resources to ensure
22 their protection, enhancement and balanced ~~utilization~~ USE consistent with
23 the environmental policy of this state.

24 7. Promote and coordinate the protection and enhancement of the
25 quality of water resources consistent with the environmental policy of
26 this state.

1 8. Encourage industrial, commercial, residential and community
2 development that maximizes environmental benefits and minimizes the
3 effects of less desirable environmental conditions.

4 9. Ensure the preservation and enhancement of natural beauty and
5 man-made scenic qualities.

6 10. Provide for the prevention and abatement of all water and air
7 pollution including that related to particulates, gases, dust, vapors,
8 noise, radiation, odor, nutrients and heated liquids in accordance with
9 article 3 of this chapter and chapters 2 and 3 of this title.

10 11. Promote and recommend methods for the recovery, recycling and
11 reuse or, if recycling is not possible, the disposal of solid wastes
12 consistent with sound health, scenic and environmental quality policies.
13 The department shall report annually on its revenues and expenditures
14 relating to the solid and hazardous waste programs overseen or
15 administered by the department.

16 12. Prevent pollution through regulating the storage, handling and
17 transportation of solids, liquids and gases that may cause or contribute
18 to pollution.

19 13. Promote the restoration and reclamation of degraded or
20 despoiled areas and natural resources.

21 14. Participate in the state civil defense program and develop the
22 necessary organization and facilities to meet wartime or other disasters.

23 15. Cooperate with the Arizona-Mexico commission in the governor's
24 office and with researchers at universities in this state to collect data
25 and conduct projects in the United States and Mexico on issues that are
26 within the scope of the department's duties and that relate to quality of
27 life, trade and economic development in this state in a manner that will
28 help the Arizona-Mexico commission to assess and enhance the economic
29 competitiveness of this state and of the Arizona-Mexico region.

30 16. Unless specifically authorized by the legislature, ensure that
31 state laws, rules, standards, permits, variances and orders are adopted
32 and construed to be consistent with and not more stringent than the
33 corresponding federal law that addresses the same subject matter. This
34 paragraph does not adversely affect standards adopted by an Indian tribe
35 under federal law.

36 17. Provide administrative and staff support for the oil and gas
37 conservation commission.

38 B. The department, through the director, shall:

39 1. Contract for the services of outside advisers, consultants and
40 aides reasonably necessary or desirable to enable the department to
41 adequately perform its duties.

42 2. Contract and incur obligations reasonably necessary or desirable
43 within the general scope of department activities and operations to enable
44 the department to adequately perform its duties.

45 3. Use any medium of communication, publication and exhibition when
46 disseminating information, advertising and publicity in any field of its
47 purposes, objectives or duties.

1 4. Adopt procedural rules that are necessary to implement the
2 authority granted under this title but that are not inconsistent with
3 other provisions of this title.

4 5. Contract with other agencies, including laboratories, in
5 furthering any department program.

6 6. Use monies, facilities or services to provide matching
7 contributions under federal or other programs that further the objectives
8 and programs of the department.

9 7. Accept gifts, grants, matching monies or direct payments from
10 public or private agencies or private persons and enterprises for
11 department services and publications and to conduct programs that are
12 consistent with the general purposes and objectives of this chapter.
13 Monies received pursuant to this paragraph shall be deposited in the
14 department fund corresponding to the service, publication or program
15 provided.

16 8. Provide for the examination of any premises if the director has
17 reasonable cause to believe that a violation of any environmental law or
18 rule exists or is being committed on the premises. The director shall give
19 the owner or operator the opportunity for its representative to accompany
20 the director on an examination of those premises. Within forty-five days
21 after the date of the examination, the department shall provide to the
22 owner or operator a copy of any report produced as a result of any
23 examination of the premises.

24 9. Supervise sanitary engineering facilities and projects in this
25 state, authority for which is vested in the department, and own or lease
26 land on which sanitary engineering facilities are located, and operate the
27 facilities, if the director determines that owning, leasing or operating
28 is necessary for the public health, safety or welfare.

29 10. Adopt and enforce rules relating to approving design documents
30 for constructing, improving and operating sanitary engineering and other
31 facilities for disposing of solid, liquid or gaseous deleterious matter.

32 11. Define and prescribe reasonably necessary rules regarding the
33 water supply, sewage disposal and garbage collection and disposal for
34 subdivisions. The rules shall:

35 (a) Provide for minimum sanitary facilities to be installed in the
36 subdivision and may require that water systems plan for future needs and
37 be of adequate size and capacity to deliver specified minimum quantities
38 of drinking water and to treat all sewage.

39 (b) Provide that the design documents showing or describing the
40 water supply, sewage disposal and garbage collection facilities be
41 submitted with a fee to the department for review and that no lots in any
42 subdivision be offered for sale before compliance with the standards and
43 rules has been demonstrated by approval of the design documents by the
44 department.

45 12. Prescribe reasonably necessary measures to prevent pollution of
46 water used in public or semipublic swimming pools and bathing places and
47 to prevent deleterious conditions at those places. The rules shall

1 prescribe minimum standards for the design of and for sanitary conditions
2 at any public or semipublic swimming pool or bathing place and provide for
3 abatement as public nuisances of premises and facilities that do not
4 comply with the minimum standards. The rules shall be developed in
5 cooperation with the director of the department of health services and
6 shall be consistent with the rules adopted by the director of the
7 department of health services pursuant to section 36-136, subsection I,
8 paragraph 10. **THE RULES ADOPTED PURSUANT TO THIS PARAGRAPH DO NOT APPLY**
9 **TO SINGLE-USER PUBLIC OR SEMIPUBLIC COLD PLUNGES.**

10 13. Prescribe reasonable rules regarding sewage collection,
11 treatment, disposal and reclamation systems to prevent the transmission of
12 sewage borne or insect borne diseases. The rules shall:

13 (a) Prescribe minimum standards for the design of sewage collection
14 systems and treatment, disposal and reclamation systems and for operating
15 the systems.

16 (b) Provide for inspecting the premises, systems and installations
17 and for abating as a public nuisance any collection system, process,
18 treatment plant, disposal system or reclamation system that does not
19 comply with the minimum standards.

20 (c) Require that design documents for all sewage collection
21 systems, sewage collection system extensions, treatment plants, processes,
22 devices, equipment, disposal systems, on-site wastewater treatment
23 facilities and reclamation systems be submitted with a fee for review to
24 the department and may require that the design documents anticipate and
25 provide for future sewage treatment needs.

26 (d) Require that construction, reconstruction, installation or
27 initiation of any sewage collection system, sewage collection system
28 extension, treatment plant, process, device, equipment, disposal system,
29 on-site wastewater treatment facility or reclamation system conform with
30 applicable requirements.

31 14. Prescribe reasonably necessary rules regarding excreta storage,
32 handling, treatment, transportation and disposal. The rules may:

33 (a) Prescribe minimum standards for human excreta storage,
34 handling, treatment, transportation and disposal and shall provide for
35 inspection of premises, processes and vehicles and for abating as public
36 nuisances any premises, processes or vehicles that do not comply with the
37 minimum standards.

38 (b) Provide that vehicles transporting human excreta from privies,
39 septic tanks, cesspools and other treatment processes be licensed by the
40 department subject to compliance with the rules. The department may
41 require payment of a fee as a condition of licensure. The department shall
42 establish by rule a fee as a condition of licensure, including a maximum
43 fee. The fees shall be deposited, pursuant to sections 35-146 and 35-147,
44 in the solid waste fee fund established by section 49-881.

45 15. Perform the responsibilities of implementing and maintaining a
46 data automation management system to support the reporting requirements of

1 title III of the superfund amendments and reauthorization act of 1986
2 (P.L. 99-499) and article 2 of this chapter.

3 16. Approve remediation levels pursuant to article 4 of this
4 chapter.

5 17. Establish or revise fees by rule pursuant to the authority
6 granted under title 44, chapter 9, articles 8 and 9 and chapters 4 and 5
7 of this title for the department to adequately perform its duties. All
8 fees shall be fairly assessed and impose the least burden and cost to the
9 parties subject to the fees. In establishing or revising fees, the
10 department shall base the fees on the direct and indirect costs of the
11 department's relevant duties, including employee salaries and benefits,
12 professional and outside services, equipment, in-state travel and other
13 necessary operational expenses directly related to issuing licenses as
14 defined in title 41, chapter 6 and enforcing the requirements of the
15 applicable regulatory program.

16 18. Appoint a person with a background in oil and gas conservation
17 to act on behalf of the oil and gas conservation commission and administer
18 and enforce the applicable provisions of title 27, chapter 4 relating to
19 the oil and gas conservation commission.

20 C. The department may:

21 1. Charge fees to cover the costs of all permits and inspections it
22 performs to ensure compliance with rules adopted under section 49-203
23 except that state agencies are exempt from paying the fees.

24 2. Monies collected pursuant to this subsection shall be deposited,
25 pursuant to sections 35-146 and 35-147, in the water quality fee fund
26 established by section 49-210.

27 3. Contract with private consultants for the purposes of assisting
28 the department in reviewing applications for licenses, permits or other
29 authorizations to determine whether an applicant meets the criteria for
30 issuance of the license, permit or other authorization. If the department
31 contracts with a consultant under this paragraph, an applicant may request
32 that the department expedite the application review by requesting that the
33 department use the services of the consultant and by agreeing to pay the
34 department the costs of the consultant's services. Notwithstanding any
35 other law, monies paid by applicants for expedited reviews pursuant to
36 this paragraph are appropriated to the department for use in paying
37 consultants for services.

38 D. The director may:

39 1. If the director has reasonable cause to believe that a violation
40 of any environmental law or rule exists or is being committed, inspect any
41 person or property in transit through this state and any vehicle in which
42 the person or property is being transported and detain or disinfect the
43 person, property or vehicle as reasonably necessary to protect the
44 environment if a violation exists.

45 2. Authorize in writing any qualified officer or employee in the
46 department to perform any act that the director is authorized or required
47 to do by law.

Senate Amendments to H.B. 2439

1 ~~[S. ADOPT RULES GOVERNING THE SANITARY CONDITIONS OF SINGLE-USER~~
2 ~~PUBLIC OR SEMIPUBLIC COLD PLUNGES.]~~

3 Enroll and engross to conform

4 Amend title to conform

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